

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00135-CR

RUSSELL HARBER, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 71st District Court
Harrison County, Texas
Trial Court No. 25-0264X

Before Stevens, C.J., van Cleef and Rambin, JJ.

O R D E R

Russell Harber appeals from a final judgment of conviction entered by the 71st Judicial District Court of Harrison County, Texas. Harber was represented by retained counsel in the trial court. Harber's trial counsel filed a motion to withdraw as attorney of record on appeal, indicating that he was retained only to represent Harber through trial. Trial counsel also indicates in his motion that Harber is indigent and requests that this Court appoint appellate counsel to represent Harber on appeal.

Trial counsel's motion to withdraw as attorney of record on appeal is granted. Further, based on the circumstances of this case, which reflect that Harber is likely indigent, we abate this matter to the trial court so that it may conduct a hearing to determine whether Harber is indigent, entitled to the appointment of counsel to represent him in this appeal, and entitled to a free record on appeal. If the trial court is satisfied that Harber is indigent without the need for an additional hearing, then the trial court shall appoint appellate counsel to represent Harber in this appeal and shall instruct the court reporter to prepare the reporter's record in this matter without payment from Harber.

Should the trial court conduct a hearing, it may enter any orders necessary to implement these directives. Any hearing shall be conducted by the trial court within ten days of the date of this order. Appropriate orders and findings shall be sent to this Court in the form of a supplemental clerk's record within ten days of the date of the hearing contemplated by this order. The reporter's record of any hearing shall be filed with this Court within ten days of the date of the hearing contemplated by this order.

All appellate timetables are stayed and will resume on our receipt of the supplemental appellate record.

IT IS SO ORDERED.

BY THE COURT

Date: October 5, 2026